

Minakshi Saxena v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2020 · WRIT - C No. 535 of 2020 · **Writ disposed; consider new-connection application and pass speaking order within four weeks.**

HEADNOTE

A new-connection applicant who had furnished a clause 4.4 indemnity bond after being asked for an ownership certificate obtained no grant and no reasoned refusal. The Division Bench held that clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 oblige the licensee to consider the application and, if there is no legal impediment, to grant the connection speedily within a month. Inaction without grant or reasoned refusal is unjustified. The petition was disposed of with a direction to consider the application and pass a speaking order either way within four weeks.

FACTUAL SUMMARY

Minakshi Saxena applied on 5 December 2019 for a new electricity connection. Instead of processing the application, the licensee demanded an ownership certificate of the premises by communication dated 12 December 2019. She furnished an indemnity bond under clause 4.4 of the U.P. Electricity Supply Code, 2005. No connection was granted and no reasoned refusal issued. She sought a mandamus under Article 226 to compel grant of the connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

new-connection-duty-to-consider

HOLDING

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 cast an obligation on the licensee to consider an application for a new electricity connection and, if there is otherwise no legal impediment, to grant the connection speedily within a month. Inaction — neither granting the connection nor refusing it with reasons — is unjustified. The writ was disposed of with a direction to respondent no. 3 to consider the petitioner's application and pass a reasoned speaking order either way within four weeks of production of a certified copy. ¶ 5-7

PRINCIPLE TAGS

licensee-must-consider-new-connection-and-grant-if-no-impediment Applied where the licensee demanded an ownership certificate, received a clause 4.4 indemnity bond, and then neither granted nor refused the new connection: the Court directed consideration and a reasoned order either way within four weeks, reciting the Code duty to grant speedily within a month if there is no legal impediment. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A NEW CONNECTION ON THE INDEMNITY BOND, AND WHETHER ANY LEGAL IMPEDIMENT TO GRANT EXISTED

¶ 7